All doubts and disputes in connection with election of the President are enquired into and decided by the Supreme Court whose decision is final. The election of a person as President cannot be challenged on the ground that the electoral college was incomplete (ie, existence of any vacancy among the members of electoral college). If the election of a person as President is declared void by the Supreme Court, acts done by him/her before the date of such declaration of the Supreme Court are not invalidated and continue to remain in force.

Some members of the Constituent Assembly criticised the system of indirect election for the President as undemocratic and proposed the idea of direct election. However, the Constitution makers chose the indirect election due to the following reasons[3]:

1. The indirect election of the President is in harmony with the parliamentary system of government envisaged in the Constitution. Under this system, the President is only a nominal executive and the real powers are vested in the council of ministers headed by the Prime Minister. It would have been anomalous to have the President elected directly by the people and not give him/her any real power.

2. The direct election of the President would have been very costly and time and energy-consuming due to the vast size of the electorate. This is unwarranted keeping in view that he/she is only a symbolic head.

Some members of the Constituent Assembly suggested that the President should be elected by the members of the two Houses of Parliament alone. The makers of the Constitution did not prefer this as the Parliament, dominated by one political party, would have invariably chosen a candidate from that party and such a President could not represent the states of the Indian Union. The present system makes the President a representative of the Union and the states equally.

Further, it was pointed out in the Constituent Assembly that the expression 'proportional representation' in the case of presidential election is a misnomer. Proportional representation takes place where two or more seats are to be filled. In case of the President, the vacancy is only one. It could better be called a preferential or alternative vote system. Similarly, the expression 'single transferable vote' was also objected on the ground that no voter has a single vote; every voter has plural votes.

The various presidential elections held so far are summarised in Table 18.1.

Table 18.1 Elections of the Presidents (1952–till now)

Sl. No.	Election Year	Victorious Candidate	No. of Votes Secured (%)	Main Rival Candidate	No. of Votes Secured (%)
1.	1952	Dr. Rajendra Prasad	507400 (83.81)	K.T. Shah	92827 (15.3)
2.	1957	Dr. Rajendra Prasad	459698 (99.35)	N.N. Das	2000 (0.4)
3.	1962	Dr. S. Radhakrishnan	553067 (98.24)	Ch. Hari Ram	6341 (1.1)